



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

October 15, 2021

### **POLICE COMMISSIONER'S PENALTY DEPARTURE**

**Re:** CCRB Case No. 201907695 regarding Sergeant Frank Aliffi, Tax No. 939856 (DADS No. 2021-23957)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that the appropriate penalty for the two substantiated allegations is a Schedule "A" Command Discipline. In this matter, Sergeant Aliffi directed an officer to perform a brief search for weapons in a bag belonging to an individual who was about to be transported in an ambulance. Both the officer and the Sergeant acknowledged candidly that the search was undertaken to ensure the safety of the ambulance crew and not in an effort to discover contraband. In light of Sergeant Aliffi's explanation for his good faith actions, a mitigated penalty would apply to this allegation, as acknowledged by CCRB.

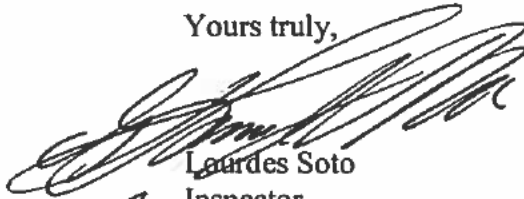
The other substantiated allegation against Sergeant Aliffi involved a threat to arrest an individual, who was ultimately properly arrested. It is not clear whether Sergeant Aliffi was aware of the underlying basis for the individual's arrest when he made the statement. However, the contraband for which he was arrested had already been discovered and that information would likely have been provided to Sergeant Aliffi closely in time to when he made the threat to arrest. Therefore, a mitigated penalty is also appropriate in connection with this allegation.

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Therefore, the Police Commissioner has determined that Sergeant Frank Aliffi will be issued a Schedule "A" Command Discipline for violating Patrol Guide Procedure 212-11 (Investigative Encounters/Search of Person) and Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Threat to Arrest).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



Lourdes Soto  
Inspector  
Commanding Officer  
Police Commissioner's Office

